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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
18/288,346	10/25/2023	Shujen YU	17784-000021-US-NP	9319

27572 7590 09/24/2025

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EXAMINER	
DEERY, ERIN LEAH	

ART UNIT	PAPER NUMBER
3754	

NOTIFICATION DATE	DELIVERY MODE
09/24/2025	ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

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Office Action Summary	Application No. 18/288,346	Applicant(s) YU, Shujen	
	Examiner ERIN L DEERY	Art Unit 3754	AIA (First Inventor to File) Status Yes

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

1)☑ Responsive to communication(s) filed on 10/25/23.

☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on _____.

2a)☑ This action is **FINAL.** 2b) ☐ This action is non-final.

3)☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.

4)☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

5) ☑ Claim(s) 1-3,6-7 and 9-15 is/are pending in the application.

5a) Of the above claim(s) _____ is/are withdrawn from consideration.

6) ☐ Claim(s) _____ is/are allowed.

7) ☑ Claim(s) 1-3,6-7 and 9-15 is/are rejected.

8) ☐ Claim(s) _____ is/are objected to.

9) ☐ Claim(s) _____ are subject to restriction and/or election requirement

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to **PPHfeedback@uspto.gov.**

Application Papers

10)☐ The specification is objected to by the Examiner.

11)☑ The drawing(s) filed on 10/25/23 is/are: a)☑ accepted or b)☐ objected to by the Examiner.

Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).

Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

12)☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

a)☐ All b)☐ Some** c)☐ None of the:

1.☐ Certified copies of the priority documents have been received.

2.☐ Certified copies of the priority documents have been received in Application No. _____.

3.☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

1) ☑ Notice of References Cited (PTO-892)

2) ☐ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b) Paper No(s)/Mail Date _____.

3) ☐ Interview Summary (PTO-413) Paper No(s)/Mail Date _____.

4) ☐ Other: _____.

DETAILED ACTION

1. This is responsive to the amendment dated 8/5/25.

2. The present application, filed on or after March 16, 2013, is being examined under the first inventor to file provisions of the AIA.

3. The text of those sections of Title 35, U.S. Code not included in this action can be found in a prior Office action.

Claim Rejections - 35 USC § 103

4. **Claims 1, 10, 14, and 15 are rejected under 35 U.S.C. 103 as being unpatentable over Mei (US 2020/0015653) in view of JP 2016013283 (hereinafter JP '283).**

5. Regarding claim 1, Mei discloses a sink assembly (1), comprising: a sink basin (101) including a bottom surface having a drain and four side walls extending upward from the bottom surface (see figure 1, 27), wherein a first sidewall of the four side walls is provided with a first series of spaced apart apertures (para. [0060]) and a second sidewall of the four side walls opposite to the first sidewall includes a second series of spaced apart apertures (para. [0060])(each rod is connected to the sidewall at opposed ends 104 and at each of which there is a mounting hole); a first elongated rail (103) attached to the first sidewall (fig. 2) by a series of connections (para. [0060], screws) through the first series of spaced apart apertures; and a second elongated rail (103) attached to the second sidewall (fig. 2) by a series of connections through the second series of spaced apart apertures (para. [0060], screws). Mei does not show the particulars of the shape of the rails. Attention is turned to JP '283 which teaches a similar sink assembly having first and second elongated rails (103) which are triangular

in cross section and the first elongated rail and the second elongated rail each include a first surface (see annotated figure below) disposed continuously against respective first and second sidewalls along an entire length of the first and second elongated rails (fig. 3), a second surface (103a) facing upward away from the bottom surface of the sink basin and a third surface (see annotated figure below) facing downward toward the bottom surface. It would have been obvious to one having ordinary skill in the art at the time of effective filing to have provided the rails in a triangular cross section having a surface that is continuously connected to the sidewall of the sink, as taught by JP '283 in order to create a ledge for resting sink utensils on.

JP '283, however, does not show that the second surface is at an acute angle relative to the first surface the first surface having a first width that is greater than a second width of the second surface and a third width of the third surface. However, there is nothing in the record which establishes that the claimed dimension or angular orientation presents a novel or unexpected result. (MPEP 2144.05(III)). It would have been obvious to have modified the device of Mei as modified to be dimensioned and oriented as claimed since such a modification is a mere design consideration which fails to patentably distinguish. MPEP 2144.04(IV)(A). A change in form or shape is generally recognized as being within the level of ordinary skill in the art, absent any showing of unexpected results. MPEP 2144.04 (IV)(B).

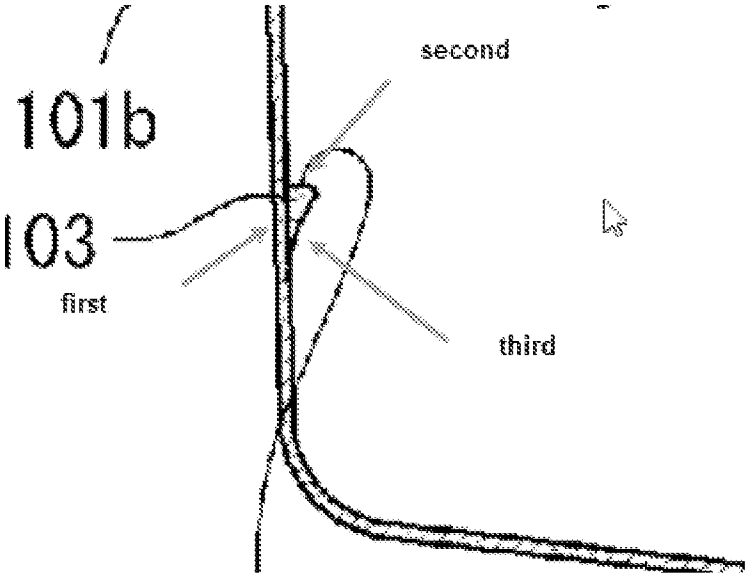
6. Regarding claim 10, Mei discloses a sink assembly (1), comprising: a sink basin (101) including a bottom surface having a drain and four side walls extending upward from the bottom surface (see figure 1, 27), and first and second elongated rails (103) attached to the first and second sidewalls, respectively (fig. 2), but does not show the

particulars of the shape of the rails. Attention is turned to JP '283 which teaches a similar sink assembly having first and second elongated rails (103) which are triangular in cross section and the first elongated rail and the second elongated rail each include a first surface (see annotated figure below) disposed continuously against respective first and second sidewalls along an entire length of the first and second elongated rails (fig. 3), a second surface (103a) facing upward away from the bottom surface of the sink basin and a third surface (see annotated figure below) facing downward toward the bottom surface. It would have been obvious to one having ordinary skill in the art at the time of effective filing to have provided the rails in a triangular cross section having a surface that is continuously connected to the sidewall of the sink, as taught by JP '283 in order to create a ledge for resting sink utensils on.

JP '283, however, does not show that the second surface is at an acute angle relative to the first surface the first surface having a first width that is greater than a second width of the second surface and a third width of the third surface. However, there is nothing in the record which establishes that the claimed dimension or angular orientation presents a novel or unexpected result/ (MPEP 2144.05(III)). It would have been obvious to have modified the device of Mei as modified to be dimensioned and oriented as claimed since such a modification is a mere design consideration which fails to patentably distinguish. MPEP 2144.04(IV)(A). A change in form or shape is generally recognized as being within the level of ordinary skill in the art, absent any showing of unexpected results. MPEP 2144.04 (IV)(B).

7. Regarding claims 14 and 15, Mei as modified shows all of the instant invention as discussed above, but is silent as to the second width being smaller than the third

width. However, there is nothing in the record which establishes that the claimed dimension or angular orientation presents a novel or unexpected result. (MPEP 2144.05(III)). It would have been obvious to have modified the device of Mei as modified to be dimensioned as claimed since such a modification is a mere design consideration which fails to patentably distinguish. MPEP 2144.04(IV)(A).



Claim Rejections - 35 USC § 103

6. The following is a quotation of 35 U.S.C. 103 which forms the basis for all obviousness rejections set forth in this Office action:

> A patent for a claimed invention may not be obtained, notwithstanding that the claimed invention is not identically disclosed as set forth in section 102, if the differences between the claimed invention and the prior art are such that the claimed invention as a whole would have been obvious before the effective filing date of the claimed invention to a person having ordinary skill in the art to which the claimed invention pertains. Patentability shall not be negated by the manner in which the invention was made.

7. **Claim(s) 2 – 3, 6, 7, 9, and 11 - 13 are rejected under 35 U.S.C. 103 as being unpatentable over Mei and JP '283, as applied to claims 1 and 10, in view of Cawthon (US 2002/0184704).**

8. Regarding claims 2 and 11, Mei as modified shows all of the instant invention as discussed above, but is silent as to the elongated rails being made from metal. Attention is turned to Cawthon which teaches a similar sink (2) with a base having a drain and a plurality of sidewalls (8, 15, 16, 174)(fig. 1) and a plurality of elongated rails (19) on the sidewalls. Cawthon further teaches that main portions of sink are made from metal (para. [0045]) and that the auxiliary components can be made of the same material as the sink (para. [0046]), and therefore, the sink walls and rails can be made of the same metal material. Accordingly, it would have been obvious to one having ordinary skill in the art at the time of effective filing to have made the elongate rails of Mei from metal, since metal is known to be water resistant.

9. Regarding claims 3 and 12, Mei as modified shows all of the instant invention as discussed above, and further provides the elongated rails are connected to the respective sidewalls by a weld connection through the series of apertures (para. [0060]).

10. Regarding claim 6, Mei as modified shows all of the instant invention as discussed above, but does not show third and fourth elongated rails attached to respective first and second sidewalls via third and fourth series of spaced apart apertures. Attention is again turned to Cawthon which teaches that it is known to put elongated rails (19) on the front and rear sidewalls in a stacked configuration such that there are first through fourth elongated rails at vertically staggered locations throughout the basin (fig. 1). It would have been obvious to one having ordinary skill in the art at the time of effective filing to have provided additional rails in the sink of Mei so that accessories can be mounted at different depths within the basin, depending on depth. Under the proposed modification, there will be the third and fourth series of spaced

apart apertures, since the apertures of Mei will be duplicated to attach the additional rails.

11. Regarding claim 7, Mei as modified shows all of the instant invention as discussed above, but does not show that the elongated rails are triangular in cross section as claimed. Attention is again turned to JP '283 which teaches a similar rail system for a sink having two elongate rails that are triangular in cross section (103)(fig 5). It would have been obvious to one having ordinary skill in the art at the time of effective filing to have provided the rails in a triangular cross section as taught by JP '283 in order to create a ledge for resting sink utensils on.

12. Regarding claims 9 and 13, Mei as modified shows all of the instant invention as discussed above, and further provides that the rails are connected to respective sidewalls via a plurality of threaded posts extending through the apertures (para. [0060], *note*: screws).

Response to Arguments

13. Applicant's arguments have been fully considered, but are not persuasive, and are addressed above in the action. The Examiner notes that the downward slope of the second surface enabling drainage due to gravity is not unexpected, but well within the purview of the ordinary artisan. See, for example, O'Brien (US 9,574,333) which shows a sink having ledges (22, 24, 26) with a similar acute slope for supporting objects, and would reasonably be expected to assist with drainage.

Conclusion

14. Applicant's amendment necessitated the new ground(s) of rejection presented in this Office action. Accordingly, **THIS ACTION IS MADE FINAL**. See MPEP § 706.07(a). Applicant is reminded of the extension of time policy as set forth in 37 CFR 1.136(a).

A shortened statutory period for reply to this final action is set to expire THREE MONTHS from the mailing date of this action. In the event a first reply is filed within TWO MONTHS of the mailing date of this final action and the advisory action is not mailed until after the end of the THREE-MONTH shortened statutory period, then the shortened statutory period will expire on the date the advisory action is mailed, and any nonprovisional extension fee (37 CFR 1.17(a)) pursuant to 37 CFR 1.136(a) will be calculated from the mailing date of the advisory action. In no event, however, will the statutory period for reply expire later than SIX MONTHS from the mailing date of this final action.

15. Any inquiry concerning this communication or earlier communications from the examiner should be directed to ERIN L DEERY whose telephone number is (571)270-1928. The examiner can normally be reached Mon - Thur, 7:30am - 4:30pm; Fri 8:00am-12:00pm.

Examiner interviews are available via telephone, in-person, and video conferencing using a USPTO supplied web-based collaboration tool. To schedule an interview, applicant is encouraged to use the USPTO Automated Interview Request (AIR) at http://www.uspto.gov/interviewpractice.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, David Angwin can be reached at (571) 270-3735. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

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/ERIN DEERY/
Primary Examiner, Art Unit 3754